

Manoj Kumar Srivastava v. State of U.P. & 2 Others

High Court of Judicature at Allahabad · Division Bench · 20 February 2018 · WRIT - C No. 24588 of 2015 (with C.M. Restoration Application No. 407286 of 2017) · **Writ allowed (20.02.2018): the impugned order dated 18.04.2015 disconnecting the occupier's electricity connection was set aside as unsustainable, there being no provision in the U.P. Electricity Supply Code, 2005 to deny an occupant a connection for want of a house-tax receipt and Section 43 of the Electricity Act, 2003 casting a duty to supply the occupier; the petitioner was awarded costs of Rs. 10,000 against respondent no. 3. The earlier dismissal in the absence of counsel (10.11.2017) was recalled and the petition restored the same day; an interim order of 29.04.2015 had already directed restoration of the connection within 48 hours.**

Source file: WRIC(A)_24588_2015.pdf

HEADNOTE

The petitioner, occupier of House No. 269, Jahageerabad, District Jaunpur, had his electricity connection (No. 0583/136830) disconnected pursuant to an order dated 18.04.2015 passed after a complaint by respondent no. 3 (the 'so-called owner') at a Tehsil Diwas, on the footing that the municipal (Nagar Palika Parishad) receipt he produced was not a house-tax receipt; the parties were separately litigating in the civil court. A Division Bench had, on 29.04.2015, granted interim relief directing restoration of the connection within 48 hours subject to the petitioner continuing to pay bills. On the merits (20.02.2018), the Court held the disconnection unsustainable: the respondents could point to no provision of the U.P. Electricity Supply Code, 2005 under which a connection may be denied to an occupant for want of a house-tax receipt, and Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to the occupier of premises, not merely the owner. Following *Seema Mansoor v. U.P. Power Corporation Ltd.* (2014 (6) ADJ 672) - which holds that an occupier/tenant has a statutory right to supply that cannot be refused for want of the landlord's consent, an interpretation that would otherwise nullify Rent Control Act protections and be opposed to public policy - and the Bench's own decision in *Mohammad Iqbal Ansari*, the impugned order was set aside, the writ allowed, and costs of Rs. 10,000 imposed on respondent no. 3. The petition, earlier dismissed in the absence of counsel on 10.11.2017, had been restored to file the same day on sufficient cause being shown.

FACTUAL SUMMARY

Manoj Kumar Srivastava, the petitioner, was the occupier of House No. 269, Jahageerabad, District Jaunpur, holding electricity connection No. 0583/136830. Respondent no. 3, described as the 'so-called owner' of the premises, and the petitioner were litigating against each other in the civil court. On a complaint by respondent no. 3 at the Tehsil Diwas of 06.04.2015, an inquiry found that the petitioner held a valid connection; on a further complaint at the Tehsil Diwas of 18.04.2015, and on objections relating to the filing of Nagar Palika documents, respondent no. 2 (the licensee) directed by order dated 18.04.2015 that the petitioner's connection be severed, and it was disconnected without notice or opportunity. The petitioner filed WRIT-C No. 24588 of 2015. On 29.04.2015 a Division Bench (Vikram Nath and Shashi Kant, JJ.) granted interim relief directing respondent no. 2 to restore the connection within 48 hours of production of a certified copy of the order and not to disconnect it till further orders, provided the petitioner continued to deposit the bills raised. On 10.11.2017 the petition was dismissed in the absence of the petitioner's counsel (the Bench also recording that no case for interference was made out and that the matter appeared to have become infructuous); that order was recalled and the petition restored on 20.02.2018 on sufficient cause for non-appearance being shown (C.M. Restoration Application No. 407286 of 2017). On the same day the Court (Sudhir Agarwal and Ajit Kumar, JJ.) decided the petition on merits and allowed it.

REUSABLE CONSTRUCTIONS

1. Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to the occupier of premises, not only the owner; correspondingly the occupier has a statutory right to obtain supply on making an application, subject to completing the prescribed formalities. **order of 20.02.2018 para 3**
2. There is no provision in the U.P. Electricity Supply Code, 2005 under which an electricity connection may be denied to (or disconnected from) an occupant of premises merely because he does not produce a house-tax receipt. **order of 20.02.2018 para 2**
3. An occupier/tenant cannot be refused an electricity connection for want of the landlord's consent; a contrary interpretation would enable a landlord to defeat the protection of the Rent Control Act and is opposed to public

HOLDING-UNITS

INTERPLAY · EA2003::43

RATIO

Occupier's connection cannot be denied/disconnected for want of a house-tax receipt; Section 43 casts a duty to supply the occupier

QUESTION

Can a distribution licensee disconnect (or refuse) an occupier's electricity connection merely because the receipt he produces is a municipal receipt and not a house-tax receipt, when no provision of the Code so requires?

HOLDING

No. Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to the occupier of premises, not only the owner, and the respondents could point to no provision of the U.P. Electricity Supply Code, 2005 under which a connection may be denied to an occupant unless a house-tax receipt is produced. The impugned order, founded only on the fact that the Nagar Palika Parishad receipt was not a house-tax receipt, could not be sustained; the writ was allowed, the order dated 18.04.2015 set aside, and costs of Rs. 10,000 imposed on respondent no. 3. order of 20.02.2018 para 2-6

EVIDENCE *"Despite repeated query, learned counsel for respondents could not show any provision under U.P. Electricity Supply Code, 2005 wherein electric connection can be denied to an occupant of the premises unless house tax receipt is produced by him."* order of 20.02.2018 para 2

EVIDENCE *"order passed by Executive Engineer is founded only on the fact that receipt of Nagar Palika Parishad is not of house tax."* order of 20.02.2018 para 2

EVIDENCE *"In view of above, the impugned order cannot be sustained. The writ petition is allowed. Impugned order dated 18.04.2015 is hereby set aside."* order of 20.02.2018 para 5

FLAG Order-sheet spanning 29.04.2015-20.02.2018 with no continuous printed page numbers; the operative merits order of 20.02.2018 has numbered paragraphs, to which the pins refer.

INTERPLAY · EA2003::43

OBITER

An occupier/tenant cannot be refused a connection for want of the landlord's consent

QUESTION

Does an occupier/tenant require the landlord-owner's consent to obtain or retain an electricity connection?

HOLDING

No. Following Seema Mansoor v. U.P. Power Corporation Ltd., the Court reiterated that an application for an electricity connection cannot be refused on the ground that there is no consent of the landlord; a lessee/tenant or occupier has a statutory right to supply, and a contrary interpretation would let a scrupulous landlord defeat the protection of the Rent Control Act and be opposed to public policy. This principle, adopted from the precedent the Court followed, applied a fortiori where the disconnection had been procured on the objection of the person claiming to be the owner. (The impugned order's stated foundation being only the house-tax receipt, this broader proposition is best treated as approving obiter here.) order of 20.02.2018 para 3-4

EVIDENCE *"an application for grant of electricity connection cannot be refused by licensee on the ground that there is no consent of the landlord."* order of 20.02.2018 para 3 (quoting Seema Mansoor)

EVIDENCE *"The provision of Section 43 of the Electricity Act cast a statutory duty upon the distribution licensee to supply electricity not only to owner but also occupier of premises located within the limits of the area of its supply subject to an application being made by owner or occupier in this regard"* order of 20.02.2018 para 3 (quoting Seema Mansoor)

PRINCIPLE TAGS

occupier-connection-not-denied-for-want-of-house-tax-receipt

The licensee could show no provision of the U.P. Electricity Supply Code, 2005 permitting denial of a connection to an occupant for want of a house-tax receipt; the disconnection, founded only on the Nagar Palika receipt not being a house-tax receipt, was set aside. order of 20.02.2018 para 2-5

Section 43 right to supply cannot be refused for want of the landlord's consent, else Rent Control Act protections would be nullified; directly apposite as the disconnection was procured on the objection of the claimed owner. Lead authorities: *Seema Mansoor v. U.P. Power Corporation Ltd.* [SCJ-115]. [order of 20.02.2018 para 3-4](#)

disconnection-not-for-landlord-tenant-dispute

A disconnection procured on the objection of the person claiming to be the owner, while owner and occupier were litigating in the civil court, could not be sustained where it rested only on the non-production of a house-tax receipt. [order of 20.02.2018 para 2](#)

NOT DECIDED — NEGATIVE AUTHORITY**NOT DECIDED — THE TITLE/POSSESSION DISPUTE BETWEEN THE PETITIONER (OCCUPIER) AND RESPONDENT NO. 3 (THE CLAIMED OWNER)**

The parties were litigating in the civil court; the Court decided only the occupier's statutory right to an electricity connection and did not adjudicate ownership or possession of the premises. [order of 20.02.2018 para 2](#)

RELATED CASES — SEE ALSO

SCJ-115 — *Seema Mansoor* (2014) - the governing precedent followed here: Section 43 duty to supply the occupier/tenant, whose connection cannot be refused for want of the landlord's consent.

SCJ-264 — *Sri Chandu Khamaru v. Nayan Malik* - the Section 43 duty to supply the owner or occupier is a correlative statutory right of the occupier.

SCJ-210 — *Radhe Shyam Singh* - landlord's consent is not required for a tenant/occupier to obtain an electricity connection under Section 43.

SCJ-293 — *Neelam Gupta* - a landlord's refusal of NOC amid a dispute is no bar to a tenant/occupier's electricity connection.

SCJ-2202 — *Mukesh Kumar Mittal* - an electricity connection is not to be disconnected on account of a landlord-tenant dispute.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd. Lucknow and others</i> 2014 (6) ADJ 672 [SCJ-115] High Court of Judicature at Allahabad (Lucknow Bench)	Section 43 of the Electricity Act, 2003 casts a statutory duty on the distribution licensee to supply electricity to the occupier as well as the owner; an occupier/tenant has a statutory right to supply and cannot be refused a connection for want of the landlord's consent, a contrary interpretation being opposed to public policy and destructive of Rent Control Act protection.	Extensively reproduced and followed as the governing precedent for allowing the writ and setting aside the disconnection. order of 20.02.2018 para 3-4	Court	Followed
<i>Mohammad Iqbal Ansari v. State of U.P. and others (Writ Petition (Writ-C) No. 17588 of 2015)</i> High Court of Judicature at Allahabad	The same Division Bench, following <i>Seema Mansoor</i> in similar circumstances, set aside an order declining an electricity connection and directed issuance of the connection.	Followed; the Bench noted that in <i>Mohammad Iqbal Ansari</i> (decided 24.10.2017) it had allowed a like petition and set aside the refusal of connection. order of 20.02.2018 para 4	Court	Followed

SCJ-2852 · *Manoj Kumar Srivastava v. State of U.P. & 2 Others* · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.